

HOUSE BILL No. 1367

DIGEST OF INTRODUCED BILL

Citations Affected: IC 12-26-17.

Synopsis: Involuntary treatment of substance use disorder. Allows an individual's spouse, legal guardian, friend, relative, or medical service provider to petition a court for involuntary substance use disorder treatment. Requires a petition to include certain information and allows a court to dismiss a petition, without prejudice, if it does not contain the required information. Requires the court to appoint a public defender if the individual subject to a petition seeking involuntary substance use disorder treatment is not represented by an attorney. Requires a court to order the individual to be evaluated by a medical provider if the court finds that: (1) the individual has a substance use disorder; (2) because of the individual's substance use disorder, the individual is experiencing impaired judgment and is unable to independently maintain the individual's activities of daily living or is a danger to self or others; and (3) the individual refuses to voluntarily participate in substance use disorder treatment. Allows a court to order a local law enforcement agency to consider whether an individual meets the criteria for emergency detention under certain circumstances. Requires a medical provider who completes an evaluation concerning an individual's need for substance use disorder treatment to submit the evaluation to the court. Specifies that after receiving an evaluation from a medical provider, the court may dismiss the petition or set a hearing for further evidence to be presented about the individual's need for substance use disorder treatment. Requires a court to order involuntary outpatient substance use disorder treatment for a period, not to exceed 90 days, if medical evidence supports that the individual requires immediate treatment for a substance use disorder and the individual has refused treatment.

Effective: July 1, 2026.

Soliday

January 8, 2026, read first time and referred to Committee on Courts and Criminal Code.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1367

A BILL FOR AN ACT to amend the Indiana Code concerning human services.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 12-26-17 IS ADDED TO THE INDIANA CODE
- 2 AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE
- 3 JULY 1, 2026]:
- 4 **Chapter 17. Involuntary Treatment for Substance Use Disorder**
- 5 **Sec. 1. (a) Involuntary treatment for substance use disorder may**
- 6 **be considered by the court under this chapter upon the filing of a**
- 7 **petition with a court having jurisdiction in the county where the**
- 8 **individual:**
- 9 **(1) resides; or**
- 10 **(2) may be located.**
- 11 **(b) A petition may be filed under subsection (a) by an**
- 12 **individual's:**
- 13 **(1) spouse;**
- 14 **(2) legal guardian;**
- 15 **(3) friend or relative; or**
- 16 **(4) medical provider.**
- 17 **(c) A petition filed under subsection (a) must include the**



following:

(1) The individual's name and date of birth.

(2) All factual allegations to support that the individual is:

(A) having a substance use disorder crisis;

(B) a danger to self or others or is unable to independently maintain the individual's activities of daily living because of a substance use disorder;

(C) unable to make the decision to seek treatment or has refused to seek treatment for substance use disorder; and

(D) in need of treatment for substance use disorder.

(3) If the individual has been evaluated by a medical provider within the past thirty (30) days for a substance use disorder, the medical provider's written statement that the medical provider believes the individual requires treatment for a substance use disorder. If the individual has not been evaluated by a medical provider within the past thirty (30) days for a substance use disorder, the petition must include this information.

(4) If an individual is represented by an attorney, the petition must identify the individual's attorney.

(d) A petition filed under subsection (a) must be served on:

(1) the individual;

(2) any court appointed legal guardian of the individual; and

(3) the individual's attorney, if applicable.

(e) A court may waive the filing fee for a petition filed under subsection (a) if the court determines that the petitioner is indigent.

Sec. 2. (a) Upon receipt of a petition filed under section 1 of this chapter, unless impracticable, the court shall conduct a hearing not later than ten (10) days after the petition is filed.

(b) If the individual is not represented by an attorney, the court shall appoint a public defender to represent the individual.

(c) Notice of a hearing conducted under this section shall be served on:

(1) the individual;

(2) any court appointed legal guardian of the individual;

(3) the petitioner; and

(4) the individual's attorney or the appointed public defender.

(d) A request for a continuance of the hearing described in subsection (a) for a period of not more than thirty (30) days may be granted for good cause shown.

(e) If a petition does not contain all information required under section 1(c) of this chapter, the court shall dismiss the petition



without prejudice.

Sec. 3. (a) Except as provided in subsection (c), if, upon the completion of the hearing and consideration of the record, the court finds that:

- (1) the individual has a substance use disorder;
- (2) because of the individual's substance use disorder, the individual is experiencing impaired judgment and is:
 - (A) unable to independently maintain the individual's activities of daily living; or
 - (B) a danger to self or others; and
- (3) the individual refuses to voluntarily participate in substance use disorder treatment;

the court shall order the individual to undergo an evaluation with an appropriate medical provider.

(b) If the court makes findings under subsection (a), the court shall order:

- (1) the individual to undergo an evaluation with an appropriate medical provider within fifteen (15) days; and
- (2) that the evaluation from the medical provider must be submitted to the court not later than fifteen (15) days after the evaluation is completed. An evaluation submitted to the court under this subdivision must include a treatment recommendation, if applicable.

(c) If, upon the completion of the hearing and consideration of the record, the evidence supports that the individual may meet the criteria for emergency detention under IC 12-26-5, the court shall order the local law enforcement agency to consider whether reasonable grounds exist to believe that the individual has a mental illness, is either dangerous or gravely disabled, and is in immediate need of hospitalization and treatment under IC 12-26-5-0.5. If applicable, the individual may be subject to the emergency detention procedures under IC 12-26-5. If an emergency detention is initiated, the petition for involuntary treatment filed under this chapter shall be dismissed without prejudice.

(d) Upon receipt of an evaluation under subsection (b)(2), the court shall do the following:

- (1) Dismiss the petition if the evaluation does not recommend that the individual requires immediate treatment for substance use disorder.
- (2) Set a hearing date to hear further evidence and make a determination as to the appropriate treatment for the individual if the evaluation from the medical provider



1 recommends immediate treatment for substance use disorder.
 2 The individual, petitioner, and medical provider shall be
 3 ordered to appear at the hearing. Additional witnesses with
 4 relevant information may also appear to provide testimony.
 5 A hearing notice issued under this section shall be served in
 6 accordance with section 2(c) of this chapter and shall also be
 7 served on a medical provider that has submitted an evaluation to
 8 the court.

9 (e) The individual must appear at a hearing under this section.
 10 If the individual does not appear and the court finds that:

11 (1) the individual was properly served; and
 12 (2) the evidence supports that the individual knowingly and
 13 voluntarily waived the right to be present at the hearing;
 14 it is within the court's discretion to continue the hearing to a later
 15 date or proceed with the hearing without the individual. A hearing
 16 may be continued under this subsection for not more than thirty
 17 (30) days.

18 (f) If the court finds, after considering the evidence presented at
 19 a hearing ordered under subsection (d)(2), that:

20 (1) medical evidence supports that the individual requires
 21 immediate treatment for a substance use disorder; and
 22 (2) the individual has refused substance use disorder
 23 treatment;

24 the court shall order the individual to receive involuntary
 25 outpatient substance use disorder treatment for a period not to
 26 exceed ninety (90) days. The court's treatment requirements for
 27 the individual shall be based upon the testimony and
 28 recommendations of a testifying medical provider that has
 29 evaluated or treated the individual.

30 Sec. 4. A petition filed under this chapter shall be dismissed:

31 (1) when the ninety (90) day treatment period described in
 32 section 3(f) of this chapter has expired; or
 33 (2) when the individual voluntarily enters appropriate
 34 substance use disorder treatment and submits documentation
 35 confirming the voluntary treatment to the court;
 36 whichever is earlier.

37 Sec. 5. Nothing in this chapter prevents an individual from being
 38 subject to an emergency detention or commitment order under this
 39 article, if the relevant criteria are met.

